

HAND v DeMATTEO, et al

25CV48423

**DEFENDANT ATTA HOME HEALTHCARE'S DEMURRER
AND MOTION TO STRIKE**

This case involves claims for medical malpractice brought by William Hand ("Plaintiff") against Amanda DeMatteo ("DeMatteo") and Atta Home Healthcare ("Atta.")

Now before the Court are a demurrer and motion to strike brought by Atta. After the filing of these motions, Plaintiff filed a First Amended Complaint on March 16, 2026. The pending demurrer and motion to strike the original complaint are therefore moot.

Atta's **Demurrer is OVERRULED and the Motion to Strike is DENIED**, both without prejudice to refile as to the First Amended Complaint.

The clerk shall provide notice of this ruling to the parties forthwith. No further Formal Order is required.

REASONER, et al v HENDERSON, et al

24CV47538

**PLAINTIFFS' MOTION FOR SUMMARY JUDGMENT OR, IN
THE ALTERNATIVE, SUMMARY ADJUDICATION**

This civil action stems from a dispute over real property and allegations of fraud and elder abuse brought by Donna S. Reasoner ("Donna") by and through her Agent-In-Fact George Reasoner and George Reasoner, individually ("George") (collectively "Plaintiffs") against Teran Henderson ("Henderson") and Elizabeth Cann ("Cann") (collectively "Defendants.") Plaintiffs bring causes of action for 1) fraud, 2) rescission of contract, 3) cancellation of written instrument, 4) declaratory relief, 5) ejectment, 6) unjust enrichment, and 7) financial elder abuse.

Now before the Court is Plaintiffs' Motion for Summary Judgment or, in the Alternative, Summary Adjudication. Defendants filed an untimely opposition.

Defendants have failed to comply with Code Civil Procedure section 473c(b)(3) and California Rules of Court Rule 3.1350(f). Under Code Civil Procedure section 473(c)(b)(3) when opposing a motion for summary judgment, the opposing party must provide:

[A] separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion.

California Rule of Court 3.1350(f) sets out the specific format for the separate statement.

"The requirement of a separate statement from the moving party and a responding statement from the party opposing summary judgment serves two functions: to give the parties notice of the material facts at issue in the motion and to permit the trial court to focus on whether those facts are truly undisputed." (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal App.4th 1197, 1210.)